

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
ANTWAN JENKINS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER BRIAN
RAMIREZ, Shield #21012, and POLICE OFFICERS
JOHN DOES #1-4 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

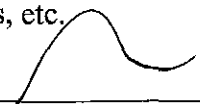
Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 21, 2012

Yours, etc.



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TO: CITY OF NEW YORK
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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, ANTWAN JENKINS, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York. On August 23, 2011, at approximately 8:30 p.m., plaintiff, Antwan Jenkins, while lawfully present in the vicinity of 117th Street and Manhattan Avenue, New York, New York, was subject to an unlawful stop, frisk, search, detention, false imprisonment, false imprisonment, malicious prosecution, assault and battery by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined plaintiff, caused the unjustifiable arrest of plaintiff, maliciously prosecuted him, and used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Antwan Jenkins is a resident of the County of New York, State of New York.

3. Police Officer Brian Ramirez, Shield # 21012 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident, Police Officer Brian Ramirez, Shield # 21012 was assigned the 28th Preinct.

5. Police Officer Brian Ramirez, Shield # 21012 is being sued in his individual and official capacity.

6. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. New York City Police Officers John Does #1-4 are and were assigned to the 28th preinct.

8. Police Officers John Does #1-4 are being sued in their individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

14. The CITY OF NEW YORK held a hearing pursuant to 50-h of the general municipal law on April 25, 2012.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On August 23, 2011, at approximately 8:30 p.m., plaintiff lawfully rode his bicycle to a convenience store located at 116th Street and 8th Avenue in the vicinity of 117th Street and Manhattan Avenue, New York, New York.

18. The defendant police officers approached plaintiff as he was entering the store and unlawfully ordered him to let go of his bicycle.

19. At no time did the defendant police officers have reasonable suspicion, probable cause, or any objectively reasonable basis to believe plaintiff committed or was about to commit a crime.

20. Nevertheless, the defendant police officers unlawfully stopped, questioned, frisked, and searched plaintiff without reasonable suspicion, probable cause, or legal justification.

21. Notably, at no time during the search of plaintiff did the defendant police officers recover any weapons, drugs, or contraband from plaintiff.

22. The defendant police officers removed plaintiff's cell phone and ipod from his pants pocket during the search and proceeded to steal said property from plaintiff.

23. The unlawful conduct of the defendant officers, along with the threatening tone of voice, and body language used by the officers, frightened plaintiff.

24. Therefore, after the officers completed their search of plaintiff's belongings, plaintiff fled the location where he was stopped.

25. At no time had the defendant officers advised plaintiff that he was under arrest and not free to leave or not free to decline their requests to search his belongings.

26. Plaintiff reasonably believed that he was free to end his interaction with the officers at any time and leave the officers presence.

27. The defendant police officers did not do anything or say anything to plaintiff that should have made him feel as though he was being detained.

28. At no time did the defendant police officers have probable cause or any objective reason to believe plaintiff committed a crime.

29. Since plaintiff had not committed any crime, the officer had apparently completed the questioning and searching of plaintiff, and the officers search and questioning of plaintiff yielded no evidence of illegal activity, plaintiff felt free to leave, he left the scene, and went to his cousin's apartment located at 400 Manhattan Avenue.

30. The defendant police officers followed plaintiff and confronted him in the hallway of his cousin's apartment building.

31. Without provocation or legal justification, the defendant officers grabbed plaintiff and forcibly threw plaintiff onto the ground and threatened to beat up plaintiff.

32. At no time did plaintiff physically resist the defendant police officers.

33. Thereafter, the defendant police officers proceeded to conduct a second unlawful search of plaintiff even though they were using excessive and unjustified force against him, and once again the defendant police officers did not recover any weapons, drugs, or contraband from plaintiff.

34. Nevertheless, the defendant police officers unlawfully handcuffed and arrested plaintiff against his will, without probable cause or legal justification.

35. The defendant police officers unlawfully transported plaintiff to the 28th precinct against his will.

36. The defendant police officers falsely communicated to the Manhattan County District Attorney's Office that plaintiff had committed a crime, and provided facts and evidence to the District Attorney's Office that they knew to be untrue.

37. A criminal prosecution was initiated by defendant police officers against plaintiff without probable cause, and based upon the falsely communications to the District Attorney's Office by the defendant police officers.

38. Thereafter, plaintiff was at the 28th precinct for approximately 5 hours before he was transferred to Manhattan Central Booking.

39. On August 24, 2011, after approximately 30 hours in defendants' custody, plaintiff was arraigned before a Judge, falsely charged with unlawful possession of marijuana, and released on his own recognizance.

40. Plaintiff made several Court appearance in connection with the false criminal charges initiated against him by the defendants.

41. On August 31, 2011, a motion to dismiss the criminal charges against plaintiff was filed on plaintiff's behalf because the fabricated allegations alleged and sworn to by the police did not even give the officers a legal basis to arrest plaintiff or prosecute him for the crimes he was charged.

42. On October 24, 2011, the Court granted plaintiff's motion to dismiss because the defendant police officers' allegations were insufficient to support the charged offense.

43. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, prosecution, and assault and battery of plaintiff.

44. A notice of claim was timely served on the Comptroller of the City of New York and at least thirty days have elapsed since the service of such notice and adjustment and/or payment has been neglected and/or refused.

45. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution and assault and battery of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stop, questions, frisked, seized, unlawfully search, falsely arrested and imprisoned, and maliciously prosecuted plaintiff without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

48. The individually named police officer defendants while acting in concert and within the scope of their authority, damaged plaintiff's motor vehicle in violation of the Fourth Amendment.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

55. Defendants lacked probable cause to search plaintiff.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Malicious Prosecution

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

62. Defendants commenced and continued a criminal proceeding against plaintiff.

63. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

64. The prosecution and criminal proceedings terminated favorably to plaintiff on October 24, 2011.

65. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SIXTH CAUSE OF ACTION

Failure to Intervene

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

72. Defendants failed to intervene to prevent the unlawful conduct described herein.

73. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

SEVENTH CAUSE OF ACTION

Negligence

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants owed a duty of care to plaintiff.

78. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, maliciously prosecuting plaintiff, and assaulting and battering plaintiff.

79. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

80. All of the foregoing occurred without any fault or provocation by plaintiff.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Antwan Jenkins. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

84. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Unlawful Stop

86. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The conduct of defendants in stopping and frisking plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

89. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

90. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State law.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Assault

93. Plaintiff repeats and realleges paragraphs 1 through 92 as if fully set forth herein.

94. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

95. Defendants were at all times an agent, servant, and employee acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Battery

97. Plaintiff repeats and realleges paragraphs 1 through 96 as if fully set forth herein.

98. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

99. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

100. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

TWELVTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. The use of excessive force by defendants in pushing and hitting plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

103. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

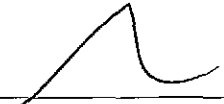
104. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Antwan Jenkins demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
November 21, 2012

By:



STUART E. JACOBS
DAVID M. HAZAN
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Attorneys for Plaintiff
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TO:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
November 21, 2012



STUART E. JACOBS